

22STCV22726 22STCV22726

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-07-22

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Case Number: 22STCV22726 Hearing Date: July 22, 2026 Dept: M

CASE NAME: Gaston v. Life

Walk Services Inc., et al.

CASE NO.: 22STCV22726

MOTION: Approve

Compromise

HEARING DATE: 7/22/2026

Minute Order:

Claimant ¿Mark H. Gaston

¿("Claimant"), a person with a disability, by and through their Guardian Ad Litem, ¿Gary Wayne Gaston¿ ("Petitioner"), has agreed to settle their claims against Defendants Life Walk Services, Inc., Monique Evans and South Central Los Angeles Regional Center, Shalom Building, LLC. Defendants agree to pay a total of \$480,000.00 (\$475,000.00 is to be paid by Life Walk, Evans, and SCLARC; and \$5,000.00 is to be paid by Shalom and Fadlon.) \$150,000.00 will be paid to Athene Qualified Assignment Corporation to fund future periodic payments. Petitioner proposes to create a Pooled Special Needs Trust to retain the net recovery, which is permitted by L.A. County Super. Ct. Rule 4.115(b)(6).

The only notable issue regards the attorneys' fees. Petitioner requests a 40% fee. The retainer agreement states that the fee would be 33.33% if settled "at or before the initial Arbitration/Mediation, Mandatory Settlement Conference or Trial." (Att. 17a.) If the case was resolved after one of those events, then the fee would

be 40%. The application does not clarify whether there was an MSC. If not, then the retainer agreement would only provide a fee of 33.33% of the gross recovery, or \$159,984.00. The proposed settlement would need to be adjusted accordingly.

Otherwise, if Petitioner demonstrates that the 40% fee is appropriate under the agreement, then the court would approve the settlement. The parties having appeared (CRC Rule 7.952(a)), and the Court having reviewed and heard the ¿Petition¿, the Court finds that the settlement is reasonable, and based thereon, approves and GRANTS the petition. (CRC Rule 7.950.) The Court intends to sign the proposed Orders (MC-351, MC-355).

THE COURT SETS AN OSC RE COMPLIANCE/PROOF OF RECEIPT OF DEPOSIT on November 16, 2026, AT 8:30 AM. No appearance required if receipt filed.

Moving party is ordered to give notice.